

The proof of service indicates the motion was served on May 19. Factoring in the Memorial Day Court Holiday, May 19 is 15 court days before the hearing.

14. 25CV04067 Wells Fargo Bank, N.A. v. Sifton, Adrian

EVENT: Plaintiff's Motion to Deem Requests for Admissions Admitted

Plaintiff's Motion to Deem Requests for Admissions Admitted is GRANTED. The Court will sign the proposed order.

15. 25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.

EVENT: City of Oroville's Demurrer to Plaintiff's Complaint

Per CCP 472 and the First Amended Complaint (FAC) filed on May 29, the demurrer is moot. The Court notes that the FAC was filed one day late.

16. 26CV01040 Turri, Daniel Eugene James v. Volkswagen Group of America Inc.

EVENT: Defendant Volkswagen Group of America, Inc.'s Demurrer to Plaintiff's Complaint

First and Fourth Causes of Action

As Defendant noted, these causes of action are essentially duplicative as they seek remedies for failure to repurchase or replace after a reasonable number of attempts. Regarding Defendant's argument that the Complaint fails to sufficiently allege the vehicle was new for purposes of *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Court disagrees. The Court finds paragraph 10 sufficiently alleges a new vehicle as that term is defined in *Rodriguez*.

Defendant contends that pursuant to Civ. Code 1791.2 the complaint must identify the authorized retail entity that sold Plaintiff the vehicle. Nowhere in section 1791.2 does it require Plaintiff to identify the identity of the retailer at the pleading stage. From a practical perspective, if the vehicle was sold from an unauthorized retailer the chances that it is actually a new vehicle pursuant to *Rodriguez* is probably slim, but there is no authority for sustaining a demurrer on this ground. Section 1971.2 contemplates a warranty from a manufacturer or retailer, and paragraph 10 adequately alleges Plaintiff received a warranty from the manufacturer.